

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
BORIS INZHIN,

Plaintiff,

-against-

**AMENDED
COMPLAINT**

17 CV 7047
(CBA) (JO)

Jury Trial Demanded

CITY OF NEW YORK, CHRISTINE CECCARELLI, Individually,
KENNETH NOONAN, Individually, THOMAS MATSON,
Individually, MICHAEL GAGLIARDI, Individually, and JOHN
and JANE DOE 1 through 10, Individually (the names John and
Jane Doe being fictitious, as the true names are presently unknown),

Defendants.
-----X

Plaintiff BORIS INZHIN, by his attorneys, Brett H. Klein, Esq., PLLC, complaining of
the defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff brings this action for compensatory damages, punitive damages and attorneys' fees pursuant to 42 U.S.C. §§ 1983, and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. §

1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff BORIS INZHIN is a forty-five-year-old man residing in Manhattan.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the individually named defendants, CHRISTINE CECCARELLI, KENNETH NOONAN, THOMAS MATSON, MICHAEL GAGLIARDI, and JOHN and JANE DOE 1 through 10, were duly sworn police officers and/or supervisors of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said

defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

12. On September 5, 2016, at approximately 5:45 p.m., plaintiff, a well-known DJ, was lawfully present inside the Lost Day Club (“LDC”), where he had a gig as one of a number of independent DJ’s working at LDC that evening as part of the festivities for Labor Day weekend that year.

13. Music was playing in the club immediately prior to Mr. Inzhin’s set.

14. Plaintiff was in the DJ booth choosing the music to be played during his set, but the sound system was controlled by a “sound man” believed to be employed by LDC.

15. Just a few minutes into his set, several NYPD officers approached Mr. Inzhin in the DJ booth and asked for his identification.

16. Mr. Inzhin’s manager was present and spoke to the officers while Mr. Inzhin continued to work.

17. Shortly thereafter, a few officers, including Captain KENNETH NOONAN, returned and arrested Mr. Inzhin without probable cause. In particular, NOONAN told plaintiff to put his hands behind his back and proceeded to handcuff Mr. Inzhin in an overly tight manner, walk him through the club in front of all of the patrons and employees of the club, and then placed him in a NYPD vehicle under arrest. The vehicle was hot, and Mr. Inzhin felt panicked.

18. The defendant NYPD officers imprisoned Mr. Inzhin in said vehicle for approximately one hour before releasing him after defendant NYPD Officer CHRISTINE CECCARELLI, after conferring with defendants THOMAS MATSON and NOONAN,

maliciously issued claimant summons number 4430816094, compelling plaintiff's appearance in Richmond County Criminal Court on November 15, 2016.

19. Defendant CECCARELLI caused said prosecution to be initiated against claimant based on false allegations which she conveyed to the Richmond County District Attorney's Office and to the Richmond County Criminal Court made for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process.

20. On November 15, 2016, Mr. Inzhin appeared in court as required, at which time he was informed by the Clerk's Office that the charges were dropped and no appearance before any judge was required.

21. The charges have been dismissed and sealed.

22. Defendants CECCARELLI, NOONAN, MATSON, MICHAEL GAGLIARDI, and JOHN and JANE DOE 1 through 10, were present and either supervised, participated in, and/or failed to intervene in the above described acts of misconduct.

23. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising its employees. Specifically, the City of New York has failed to train its police officers in the proper issuance of summonses generally, and regarding New York City's noise code statutes more particularly.

24. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants are insufficiently trained regarding: the proper issuance of

summonses, and that NYPD officers routinely issue baseless and facially insufficient summonses to individuals in response to summons quotas, depriving said individuals of their constitutional rights. *See e.g., Stinson, et al., v. City of New York, et al.*, 10 Civ. 4228 (RWS), pending in the Southern District of New York.

25. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

26. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY OF NEW YORK has retained these officers, and failed to adequately train and supervise them.

27. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

28. All of the aforementioned acts deprived plaintiff BORIS INZHIN of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

30. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

31. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

32. As a result of the foregoing, plaintiff BORIS INZHIN sustained, *inter alia*, physical injuries, emotional distress, embarrassment, and humiliation, and deprivation of his liberty and his constitutional rights.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION **(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)**

33. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “32” with the same force and effect as if fully set forth herein.

34. Defendants arrested plaintiff BORIS INZHIN without probable cause, causing him to be detained against his will for an extended period of time.

35. Defendants caused plaintiff BORIS INZHIN to be falsely arrested and unlawfully detained.

36. As a result of the foregoing, plaintiff BORIS INZHIN is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

37. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “36” with the same force and effect as if fully set forth herein.

38. Defendants had an affirmative duty to intervene on behalf of plaintiff BORIS INZHIN, whose constitutional rights were being violated in their presence by other officers.

39. The defendants failed to intervene to prevent the unlawful conduct described herein.

40. As a result of the foregoing, plaintiff BORIS INZHIN’ liberty was restricted for an extended period of time, he was put in fear of his safety, he was subjected to handcuffing, and he was humiliated and compelled to appear in criminal court.

41. As a result of the foregoing, plaintiff BORIS INZHIN is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

42. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “41” with the same force and effect as if fully set forth herein.

43. The supervisory defendants personally caused plaintiff’s constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

44. As a result of the foregoing, plaintiff BORIS INZHIN is entitled to compensatory

damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

45. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "44" with the same force and effect as if fully set forth herein.

46. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

47. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff BORIS INZHIN'S rights as described herein. In addition, the New York City Police Department has failed to properly train its employees with regard to the proper issuance of summonses, and defendant City was aware that NYPD officers routinely issued baseless and facially insufficient summonses to individuals in response to summons quota's, depriving said individuals of their constitutional rights. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

48. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate

indifference to the safety, well-being and constitutional rights of plaintiff BORIS INZHIN.

49. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff BORIS INZHIN as alleged herein.

50. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff BORIS INZHIN as alleged herein.

51. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff BORIS INZHIN was unlawfully arrested and maliciously prosecuted.

52. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff BORIS INZHIN' constitutional rights.

53. All of the foregoing acts by defendants deprived plaintiff BORIS INZHIN of federally protected rights, including, but not limited to, the right:

- A. To be free from false arrest/unlawful imprisonment;
- B. To be free from the failure to intervene;
- C. To receive his right to fair trial; and
- D. To be free from malicious prosecution.

54. As a result of the foregoing, plaintiff BORIS INZHIN is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Supplemental State Law Claims

55. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “54” with the same force and effect as if fully set forth herein.

56. Within ninety (90) days after the claims herein accrued, plaintiff duly served upon, presented to and filed with the CITY OF NEW YORK, Notices of Claim setting forth all facts and information required under the General Municipal Law 50-e.

57. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

58. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

59. Plaintiff has complied with all conditions precedent to maintaining the instant action.

60. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A FIFTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

61. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “60” with the same force and effect as if fully set forth herein.

62. The defendant officers arrested plaintiff BORIS INZHIN without probable cause.

63. Plaintiff was detained against his will for an extended period of time.

64. As a result of the aforementioned conduct, plaintiff BORIS INZHIN was unlawfully detained in violation of the laws of the State of New York.

65. As a result of the aforementioned conduct, plaintiff BORIS INZHIN suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

66. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the foregoing, plaintiff BORIS INZHIN is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN SIXTH CAUSE OF ACTION
(Assault under the laws of the State of New York)

68. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "67" with the same force and effect as if fully set forth herein.

69. As a result of the foregoing, plaintiff BORIS INZHIN was placed in apprehension of imminent harmful and offensive bodily contact.

70. As a result of defendant officers' conduct, plaintiff BORIS INZHIN has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

71. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the foregoing, plaintiff BORIS INZHIN is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs

and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Battery under the laws of the State of New York)

73. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “72” with the same force and effect as if fully set forth herein.

74. Defendant officers made offensive contact with plaintiff BORIS INZHIN without privilege or consent.

75. As a result of the defendant officers’ conduct, plaintiff BORIS INZHIN has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

76. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the foregoing, plaintiff BORIS INZHIN is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

WHEREFORE, plaintiff BORIS INZHIN demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: New York, New York
June 15, 2018

BRETT H. KLEIN, ESQ., PLLC
Attorneys for Plaintiff BORIS INZHIN
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By: s/ Brett Klein
BRETT H. KLEIN (BK4744)

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X

BORIS INZHIN,

Plaintiff,

17 CV 7047
(CBA) (JO)

-against-

CITY OF NEW YORK, CHRISTINE CECCARELLI, Individually,
KENNETH NOONAN, Individually, THOMAS MATSON,
Individually, MICHAEL GAGLIARDI, Individually, and JOHN
and JANE DOE 1 through 10, Individually (the names John and
Jane Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

AMENDED COMPLAINT

BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiff
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

BORIS INZHIN

Plaintiff(s)

v.

CITY OF NEW YORK, CHRISTINE CECCARELLI,
KENNETH NOONAN, THOMAS MATSON,
MICHAEL GAGLIARDI, et al.

Defendant(s)

)
)
)
)
)
) Civil Action No. 17 CV 7047 (CBA) (JO)
)
)
)
)
)

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Kenneth Noonan (Tax ID: 924257)
c/o NYPD 123rd Precinct
116 Main Street
Staten Island, New York 10307

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are: Brett H. Klein, Esq., PLLC
305 Broadway, Suite 600
New York, New York 10007

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

DOUGLAS C. PALMER
CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. 17 CV 7047 (CBA) (JO)

PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____ .

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____ ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____, a person of suitable age and discretion who resides there,
 on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____ ; or

☐ I returned the summons unexecuted because _____ ; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

Print

AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

BORIS INZHIN

Plaintiff(s)

v.

CITY OF NEW YORK, CHRISTINE CECCARELLI,
KENNETH NOONAN, THOMAS MATSON,
MICHAEL GAGLIARDI, et al.

Defendant(s)

)
)
)
)
)
) Civil Action No. 17 CV 7047 (CBA) (JO)
)
)
)
)
)

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Thomas Matson (Shield #: 23495)
c/o NYPD 123rd Precinct
116 Main Street
Staten Island, New York 10307

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are: Brett H. Klein, Esq., PLLC
305 Broadway, Suite 600
New York, New York 10007

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

DOUGLAS C. PALMER
CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. 17 CV 7047 (CBA) (JO)

PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____ .

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____ ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____ , a person of suitable age and discretion who resides there,
 on *(date)* _____ , and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____ , who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____ ; or

☐ I returned the summons unexecuted because _____ ; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

Print

AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

BORIS INZHIN

Plaintiff(s)

v.

CITY OF NEW YORK, CHRISTINE CECCARELLI,
KENNETH NOONAN, THOMAS MATSON,
MICHAEL GAGLIARDI, et al.

Defendant(s)

)
)
)
)
)
) Civil Action No. 17 CV 7047 (CBA) (JO)
)
)
)
)
)

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Michael Gagliardi (Shield #: 6808)
c/o NYPD Narcotics Borough Staten Island
One Police Plaza
New York, New York 10038

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are: Brett H. Klein, Esq., PLLC
305 Broadway, Suite 600
New York, New York 10007

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

DOUGLAS C. PALMER
CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. 17 CV 7047 (CBA) (JO)

PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____ .

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____ ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____, a person of suitable age and discretion who resides there,
 on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____ ; or

☐ I returned the summons unexecuted because _____ ; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

Print